

demurrer to a standalone cause of action for declaratory relief as to whether plaintiffs' insurer had a conflict of interest that required appointment of *Cumis* counsel in an underlying tort lawsuit against the plaintiffs defended and settled by the insurer, determined adverse to plaintiffs]; *Bennett v. Hibernia Bank* (1956) 47 Cal.2d 540, 549–550 ["It is the general rule that in an action for declaratory relief the complaint is sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties . . . and requests that the rights and duties be adjudged. [Citation.] If these requirements are met, the court must declare the rights of the parties whether or not the facts alleged establish that the plaintiff is entitled to a favorable declaration."].)

Defendants' demurrer is similarly unsupported as it pertains to the injunctive relief cause of action. Defendants make no arguments as to why injunctive relief is barred by the statute of limitations in its entirety, in light of the continuous accrual doctrine as discussed above regarding the contract and misrepresentation claims. They cite no authority that injunctive relief, an equitable remedy, is subject to the bar of the economic loss rule. Based on the Court's ruling that Plaintiff has alleged facts sufficient to support some substantive claims for relief as set forth above, defendants have not made reasoned arguments supported by authority that injunctive relief is a remedy barred as a matter of law so as to support the Court sustaining a demurrer to the s cause of action.

The demurrers to the ninth, tenth, and eleventh causes of action are **overruled**.

20. 9:00 AM CASE NUMBER: L24-03879
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. BRITTNEE CRUZ
***HEARING ON MOTION IN RE: VACATE JUDGEMENT**
FILED BY:

TENTATIVE RULING:

This case is re-assigned to Dept. 14, Hon. Kirk Athanasiou, Presiding. This motion is continued, *sua sponte*, to January 12, 2027 at 9:00 a.m. in Department 14, which is located at the George D. Carroll Courthouse, 100 37th St., Richmond, CA 94805. Parties are ordered to appear in-person or remotely via Zoom. No appearance is required on September 9, 2026.

21. 9:00 AM CASE NUMBER: N26-0485
CASE NAME: PETITION OF:JOSE EFREN GRAJEDA
HEARING ON PETITION IN RE: FOR AN ORDER RELIEVING PETITIONER FROM GOVERNMENT ENTITY CLAIM FILING REQUIREMENTS
FILED BY:

TENTATIVE RULING:

The Court continues the hearing on this motion, *sua sponte*, to October 14, 2026 at 9:00 a.m. Briefing is closed. No appearance is required at the hearing on September 9, 2026.